

City Council

200 North Lake Street
Cadillac, Michigan 49601
Phone (231) 775-0181
Fax (231) 775-8755



Mayor
William S. Barnett

Mayor Pro-Tem
Art Stevens

Councilmembers
Douglas Mellema
Shari Spoelman
Tiyi Schippers

RESOLUTION NO. _____

RESOLUTION APPROVING AGREEMENT BETWEEN THE WEXFORD COUNTY ROAD COMMISSION AND THE CITY OF CADILLAC FOR THE DESIGN, ENGINEERING AND CONSTRUCTION OF ROAD IMPROVEMENTS

At a regular meeting of the City Council of the City of Cadillac, Wexford County, Michigan, held in the Council Chambers, Cadillac Municipal Complex, 200 North Lake Street, Cadillac, Michigan, on the 16th day of July, 2012, at 7:00 p.m.

PRESENT: _____

ABSENT: _____

The following preamble and resolution was offered by _____ and seconded by _____.

WHEREAS, the Road Commission and the City met and developed a plan to improve traffic and safety at the intersection of Plett Road and Thirteenth Street (the "Project"), a portion of which is located within the City; and

WHEREAS, the Project includes, but is not limited to the construction of a "roundabout" at the intersection of Plett Road and Thirteenth Street; and

WHEREAS, the Road Commission has designed, engineered and will construct the Project in accordance with the plans and specifications on file with the City; and

WHEREAS, MCL 124.1 et seq. authorizes municipal corporations to enter into contracts with other municipal corporations "for the ownership, operation, or performance, jointly, or by any 1 or more on behalf of all, of any property, facility or service which each would have the power to own, operate or perform separately"; and

WHEREAS, the Road Commission sought and received partial funding for the Project through the Michigan Department of Transportation's Safety Program; and

WHEREAS, the Road Commission has requested that the City contribute Sixty Thousand Dollars (\$60,000) to the unfunded portion of the Project for the City's share of engineering, grant fund matching and construction engineering; and

WHEREAS, the City has determined that entering into this Agreement will benefit the health, safety and welfare of the City's residents by improving the traffic and safety at the intersection of Plett Road and Thirteenth Street.

NOW, THEREFORE, the City Council of the City of Cadillac, Wexford County, Michigan, resolves as follows:

1. The Agreement Between The Wexford County Road Commission And The City of Cadillac For The Design, Engineering And Construction of Road Improvements (the "Agreement," attached as Exhibit A) is hereby approved.

2. The Mayor and Clerk are authorized and directed to execute the Agreement on behalf of the City of Cadillac.

3. The Mayor and Clerk are authorized to make any changes to the Agreement in consultation with the City Attorney, provided that such changes do not increase the cost of the Project allocated to the City.

4. Any and all resolutions that are in conflict with this Resolution are hereby repealed to the extent necessary to give this Resolution full force and effect.

YEAS: _____

NAYS: _____

STATE OF MICHIGAN)
)
COUNTY OF WEXFORD)

I, Christine L. Benson, City Clerk of the City of Cadillac, hereby certify this to be a true and complete copy of Resolution No. 2012-____, duly adopted at a regular meeting of the City Council held on the 16th day of July, 2012.

Christine L. Benson
Cadillac City Clerk